



SPEECHES AND ADDRESS AND GAMOR.

A detailed black and white illustration of an alligator, shown from a side profile, facing left. It is positioned centrally behind the main title text.

STEPHEN H. BRANCH'S ALLIGATOR.

Volume I.--No. 20

SATURDAY, SEPTEMBER 4, 1858.

Price 2 Cents.

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Vol. 1 no. 20, September 4, 1858**

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BRANCH'S ALLIGATOR, VOL. 1 NO. 20, SEPTEMBER 4, 1858 ***

STEPHEN H. BRANCH'S ALLIGATOR.



Volume I.—No. 20

SATURDAY,
SEPTEMBER 4,
1858.

Price 2 Cents.

And they Stoned Stephen.

We are told by the Holy Scriptures that one of the Apostles, who, preaching integrity and truth to the Pharisees of old, offended those who belonged to the Tabernacle of libertines, was brought before the council, which, by arousing public sentiment in a seditious manner, caused Stephen to be stoned. And in our modern day they have likewise stoned Stephen by placing him, unaccustomed to toil, and guiltless of all crime, save the free exercise of opinion, to labor in a quarry along with felons, thieves, and other obnoxious convicts; and in this wise have our modern Pharisees stoned Stephen.

The Warden of the Penitentiary, suffering from din of public opinion, has seen proper to extenuate his conduct by stating that he was compelled, by rigidity of duty, thus to place Mr. Branch in a position of labor. Thus has he communicated his thoughts for publication to the editor of the *Sunday Mercury*, and when he uttered them he was well aware that they were a mere subterfuge to avoid personal indignity. And now we challenge the Warden to show one single word in his instructions rendering it compulsory upon him to employ any one soul in the quarrying of stone. On the contrary, his instructions particularly enjoin upon him the exercise of moderation and forbearance as a taskmaster, and most explicitly direct that no prisoner, incapable of physical labor, shall be employed at manual servitude. The law of the State, despite the tendencies of Mr. Fitch, recognizes every being, created in human form, to be possessed of a soul, as well as being of value to the commonwealth; for a man incarcerated in the penitentiary, is not devoid of civil life as is the case with a convict to the State prison, and wherefore then did he stone Stephen?

Mr. Fitch, the Warden, may remember that a woman, convicted of the most brutal of crimes, which the law unfortunately has left unvisited by proper

punishment, that of the murder of the innocents, as yet unborn, was, during her residence at the Island, favored not only with the comforts, but the luxuries of an easy existence. And still they stoned Stephen.

The Warden, in addition to this instance of the famous Madame Restell, may remember that a French gentleman, convicted of a most gross and obscene libel upon the Rev. Mr. Verien, was not only suffered to remain in idleness, and without the prison clothes, but was absolutely lodged in the Warden's house, remunerating him for his comfortable existence by instructing his daughters in a knowledge of the French tongue. And still they stoned Stephen!

The Warden may remember, moreover, that Mr. Judson, convicted of a misdemeanor in exciting the Astor Place riot, was allowed two days of weekly absence to attend the publication of a journal by him published—a fact notorious to every reader of *Ned Buntline's Own*. And still they stoned Stephen!

We are sorry that the Warden so far committed himself as intentionally to persecute a harmless, unoffensive man, whose true crime is a steady adherence to truth. Allow us to assure him that while we admire his penitence for the moment, we cannot forgive the fact that he stoned Stephen!

Is the Atlantic Telegraph Actually Complete?

It is still doubted by many whether the Atlantic cable is actually laid and perfect, as is reported. There is, we believe, no actual proof of the fact, beyond that in the hands of those who have a pecuniary interest in its being completed. It is said that the Queen's message and the President's reply have been transmitted. Have they? Who knows?

Mr. Field has notified the public that the line will not be opened for its use in much less than a month—that he also has resigned the directorship. Has he sold his stock, and thus disqualified himself from holding office? And will most of the stock have changed hands within the month? And will something have happened to the cable in the meantime to render it useless? Will the directors prove the fact of the cable being securely laid and in working order, by transmitting a message and returning an answer, if it is but a single sentence? If they are able to transmit one word they can do this. It would certainly be too bad if it should prove to be a Kidd salvage affair. Then all the gas which has been evolved, and all the powder burnt in the extreme jollification, would be a total loss; together with part of the City Hall, and Justice into the bargain. We certainly would advise those who have been lately canonized to show these surmises to be false before their honors grow dim.

A Commotion in the Jarsies.

The ALLIGATOR, feeling himself some pumpkins, on Sunday last, ventured upon an excursion to the Jarsies, as much from a desire to have universal absolution by a pilgrimage to the shrine of St. Quietus, as from a longing to fraternize with the gallant Zouave, so particularly enamored with the “blunt.” Basking in the smiles, literal and liquid, of the Hotel Napoleon, and, sunned by the presence of the fair hostess, the Alligator was enwrap in a pleasant revery, much after the owl-like manner, in which the sedate and philosophical Peter Cooper presides over a reform convention. But his repose was broken by learning the astounding fact that the Jersies, and especially Hoboken, was in a state of political insurrection, and that for the moment the authority of James Buchanan, President of these United States, was despised, contemned and absolutely denounced,—and even one rebel, unconscious of the Alligator’s presence, absolutely expressed a fervent desire to punch that dignitary’s venerable head. It seems from all that we can glean, that the Executive of this Republic, feeling the salvation of the country to depend upon the electors of Hoboken and the parts circumjacent, directed the renomination of the representative in Congress, at present representing that district. This, it seems, was too much for Jersey patience, exhausted as it is from passive submission to the tyranny of Camden and Amboy; and, therefore, Hoboken has raised the standard of revolt in the person of a learned judge, who is to mount the stump to vindicate the honor of Jersey, and perhaps of its lightning. How the unterrified democracy will survive this disaffection, we are at a loss to imagine—for the loss of Hoboken, which familiarly styles itself our sister city, and a very infant of a sister at that, must be a bitter pill to an Administration in a tight place. One hope only is left. Cannot the President induce John McKeon to reduce the rebellious people to a perpetual slumber by one of his soporific orations; and even should this fail, perchance Mr. Justice Whitley might be induced

to talk to them for half an hour. We are convinced that the people of Jersey would do anything rather than submit to this final calamity.

To Our Readers.

During the past few weeks, it has been currently reported in some quarters, that D. W. JOBSON, Esq., is now conducting the *Alligator*.

That is not so. Mr. JOBSON never had—has not now, and, for aught we know at present, never will have anything to do with the *Alligator*.

Answers to Correspondents.

“VAN.”—Your communication will appear in our next issue, it being received too late to be of use for the moment.

THE ALLIGATOR.

New York, Saturday, September 4, 1858.

More Advice to Mr. Barnard.

When Mr. Recorder Barnard sat in Solomonic judgment on Stephen H. Branch, he evidently forgot for the moment the dignity of a judge, and assumed the questionable attributes of a politician. That Mr. Recorder Barnard is nominally a lawyer we will admit, for he comes under all provisions of the New Code, which creates lawyers with the celerity of machinery; but that he understands the law, we emphatically deny. Before Mr. Barnard mounted the Bench, was his name ever known to the community as a successful barrister? Was he ever intrusted with any important civil or criminal case? Did he ever make a speech the most common-place reporter thought worthy of being reproduced in type? Not one of those tests of popularity, which appertain to the career of the most common of attorneys, seem to apply to the case of our learned Recorder, upon whose brow honor and glory have stumbled as it were by accident.

Mr. Barnard, in sentencing Mr. Branch, evidently desired to impress the public mind with an idea of his individual authority; forgetting that he was armed with the sword of mercy, he wielded only that of justice, and with a vindictiveness, as reckless as it was violent, loaned himself to the wishes of partizan leaders, who daily stand in dread of exposure from an unbridled press. As vermin cannot dwell in certain atmospheres, these men stifle coming in contact with the air of a free press; and it is to them we owe the bitter persecution of free opinion, as is glowingly instanced in the judgment passed upon Branch. A self-same punishment would have been meted out to any offending editor, who may touch the dignity of the confederated band, who thus attempt to throttle speech, whose freedom should be indigenous to the soil.

How long has Mr. Barnard learned that a convicted editor is a mere felon? That he should be maltreated, disgraced, and placed even below the level of

thieves and malefactors? The case of Mr. Branch is probably the first on record, wherein a man condemned for libel was compelled to submit to prison discipline, intended only for a minor class of felons. But as this case has occurred, it has afforded to our people a fair opportunity of judging upon the irresponsibility, we will not say imbecility, of an elective judiciary. Catch the most insignificant errand-boy in the nearest lawyer's den, and he will give you a better legal, if not more humane, exposition of the true genius of the laws than was publicly enunciated by Mr. Recorder Barnard, who indirectly repudiated pure maxims of jurisprudence, and substituted vagaries of vengeance. Let us, therefore, profit by this casual display of sentiment; for say we to all quarters of the city, with a voice as of that of a watchman in the hour of alarm, that none, not even the pure and guileless, are safe while fantasies such as these are suffered to be fulminated from a criminal bench. And likewise mind, we draw a grave distinction between our civil and criminal judiciary. Unfortunately, the highest and most respected of our judges are occupied solely with the rights of property, and we have committed the rights of the person to the most obscure of obscure attorneys, accidentally thrust from pure partizan influence upon the Bench. While the truly learned Justice Clerke, a lawyer such as the way of Christian life would make him, is simply occupied in matters of dollars and cents, our lives, our persons, our future, immaculate, are intrusted to the supervision of such learned pundits as Mr. Recorder Barnard and City Judge Russell.

Liberty of speech is a right, paramount to that of every other consideration; it has been treasured as the key-stone to the great, unwritten Constitution of Britain and of our own land; it is the vital essence of our political existence, and its abuse has been judicially tolerated that the spirit shall be perpetuated. But as Mr. Recorder Barnard has not probably indulged in the intellectual luxury of perusing Hallam's Constitutional History—such a work being unknown to the New Code—we will excuse him from any implied admiration of that respect, yea, adoration, for personal rights, which animated the manly soul of Algernon Sidney and fired the patriotism of John Hampden.

We simply wish to inform Mr. Recorder Barnard that he labors under a delusion when he presumes libel to be a misdemeanor in the literal sense of the word, and although the law may be virtually misconstrued in such a

wise as to authorize interpretation that it may verge upon misdemeanor, still the practice of Courts, presided over by Kent, by Eldon, and by Camden, has essentially abrogated any such pretence in fact. In meeting out to Mr. Branch the doom of a common thief, in disgracing and degrading him before the eyes of a community, he attempted in a feeble way, it may be observed, to instruct and enlighten. Mr. Barnard and his satellites not only erred in tempor, but in absolute legality. They have reaped a harvest of glory in the un murmured cases of a sympathetic public who will profit by the lesson we have received, and hence forward seek not such servants as these.

The Law's Delay.

It was confidently expected that a revision of the judgment upon Mr. Branch would have been had in the early part of this week. We, however, learn from Mr. Ashmead, that the Court being pre-occupied by civil business, have postponed consideration of his motion until the month of September, when the learned counsellor feels assured that the relief he prays for will be granted, and a new trial be had.

In this sacrifice of personal rights to the emolument of that of property, we notice the inconsistency of the law which thus creates an invidious distinction between things animate and inanimate. Here, then, we have a person kept in jail, in a state of vexatious misery, while the Court is occupied by the consideration of some quarrel of Smith and Jones over a bale of cotton, or some other triviality in a commercial point of view. Now, the most valuable of all rights is that of locomotion, and the dearest of all writs is that of *habeas corpus*, instituted expressly for the relief of the individual from unjust detention. And still all the provisions of this famous act are neutralized the instant the prisoner gets into the clutches of the judiciary, whose slow motions are too often a cause of unintentional wrongdoing.

In the case of the People vs. Haines, the prisoner served his time out in the State Prison, and was afterward granted a new trial and found not guilty. Ashley, tried for forgery, served eighteen months, when upon a new trial he was found guiltless of the crime charged upon him. Much as we talk about the freedom of our institutions, the rights of prisoners are too little respected by the tardy process of legal procedure. We trust that when the new constitution be framed that preference will be given to all cases involving personal liberty.

The First of September—let us remember.

It was observed by an English writer the heart of an alderman lays in his belly. It may be true of an English alderman, but with ours the centre of all affections rests in the pocket—touch him there, and you draw his life's blood. Dining is the mere relaxation with our aldermanic council, by which they occasionally while away the fatigues of mathematical calculations on the gross profits of contracts. They eat not as a matter of duty, but from absolute necessity. We are to have a municipal banquet on the first of September, to testify our joy at the successful laying of the Atlantic Cable; and the same gentlemen, who did the mourning over James Munroe, have kindly condescended to do our merriment over the cable. Our Aldermen have acute sensations; at one moment they are plunged in the depths of woe, at another they are frantic with delight. In a word, they do everything, even praise God, not in church, but at the Crystal Palace.

We being of the poorer class feeders on pork and beans, are not expected to have stomachs, capable of being with fat capon lined, so we, tax payers will have to imagine the splendor of the scene, seen through the gloomy columns of a morning newspaper. And therefore let us riot in imagination and taste the pleasures of the honor in anticipation.

We see before us, seated in his chair of state, the great Puttyman, and we worship his Worship like unto the mighty Bendimeer, for him to speak, for us to hear. And as the words of humid eloquence are distilled from his lips, we will wonder how we could unfold so sound, unvarnished a tale, and admit that painting spoils the lily and the rose, until weighed down by the profundity of magisterial love, we unconsciously droop to balmy slumber. And then we shall have Alderman Clancy, whose soft persuasive tones shall wake thunders of applause, as he extols the fighting glories of the Sixth, and

promises that if the cable has necessity of gallant defenders, he knows a band ready to fight for it.

And then there will be the grave and illustrious Peter, who will act the part of the skeleton at the Egyptian feast, with an occasional smile as a token of our approaching smile. He will make but few remarks; the most telling of which will be a short sentence, offering the use of the basement cellar of the Institute wherein to coil away the tail end of the cable.

And then we will have Simeon Draper, the facetious prince of diners-out, whose portly presence was never known to fail a municipal feast. He will illuminate us with jokes, such as were wont to enliven the monotony of an Alms House board. And then we will mourn to think that some day must come when the Corporation Yorick will be no more.

It will be a great feast!—a revelry of wit, humor, and sentiment; a gathering together of all imaginable elements of greatness, from every quarter of the city, and it is only to be regretted that the Lord Mayor of London and him of Dublin cannot be sent, per the cable, to participate in the scene of self-glorification, it would afford them such an instructive lesson in the principles of municipal democracy. But as they are requested to dine simultaneously with our body corporate, so shall the *Alligator*, in an humble manner, it must be conceded, for we dine at our own expense—a consideration not entering into the heads of our authorities. At the exact moment when Simeon Draper cracks his sixth joke, the *Alligator* will honor Waterman with a command for “ein lager!”

Long Branch and Short Branch.

While Branch rusticates upon the Island, Long Branch has had the honor of a most distinguished assembly, lay, clerical and divine. While Alderman Clancy, pink of municipal Nestors, has consented to bloom away from Blossom Lodge, and here to perform the duties of the Mayoralty, his Honor, the great Puttyman, comfortably dozes to the music of Jersey musquitos, his repose only broken by the unwelcome intrusion of John McKeon—the leanest of Pharoah’s lean kine. His Honor and the inevitable John, although doubtlessly the master spirits of the mysterious conference held at the Branch, and which will probably be elucidated after the next election, however played second fiddle to Archbishop Hughes, a venerable prelate, who, well aware of the qualities of putty, can mould it at his will. What Peter Cooper does at the conference beyond yarning, it is difficult to imagine, his peculiarities being generally limited to that operation of the muscles. If these worthy gentlemen can conceive that they can use the Archbishop for their political purposes, they are slightly mistaken, for that enthusiastic prelate is too old a bird to be caught by any kind of chaff, and we doubt whether Puttyman & Co. can manufacture salt enough from the Atlantic ocean to be placed on his venerable tail. We may remind this scheming crew, that, some years ago Governor Seward and his private governor, Thurlow Weed, attempted a sale of the worthy Archbishop, who, in return for the compliment, bought himself in and sold out his would-be purchasers at a remarkably low figure. With this decided case before their eyes, we beg to caution poor Puttyman and Peter to keep their eyes skinned, otherwise they may be found embalmed within the new Cathedral.

All for a Quarter.

We read in the daily prints that a gentleman by the name of Hoey, while returning from Rockaway, in company with a gentleman and lady, in passing a turnpike gate, gave the girl, attending the bar, a coin which he presumed to be a good American quarter dollar, but which the girl pronounced to be bad. The turnpike man, who chances to be a justice of the peace, immediately caused the arrest of all parties, who were forced to send to Rockaway for bail. Even after the arrival of the bail the party were detained several hours from lack of the necessary printed blanks, while Mr. Justice and turnpike man Pearsall, copied the process from a musty law tome. It is needless to add that upon the appearance of Mr. Hoey and counsel from New York, all proceedings were dismissed as frivolous.

Gross as this outrage may appear at the first blush, and intense as was the stupidity of the Long Island Dogberry, it can be daily paralleled by the actions of our own law courts, especially when we extract our police magistrates from barrooms and grogeries. Now one question: Have we one single police magistrate in this city who ever swept out a lawyers office, much less ever studied the profession? They are doubtlessly intelligent and well-meaning men, but then they are not lawyers, and consequently unfit to be entrusted with the custody of our personal independence. No right can be dearer than that of free locomotion, and therefore we should be more particular in the selection of these judges, than those controlling the right of property. Imprisonment, like the dew of heaven, falls alike upon the rich and the poor, and no citizen should be jeopardized as to personal liberty and representation without the strongest possible precaution.

News from a Watering Place.

Peter Cooper, the learned, astute, and never to be forgotten Peter, finds it to be invaluable to his health, to snuff the sea breeze in the classic freshness of Long Branch. Archbishop John, fatigued with the cares of Cathedral dedication, found it likewise to his advantage to smell the air in the same locality, and for fear of want of amusement he brought with him the Vicar General of his diocese, and a brother of some order—probably of the Redemptorists, or of some other evangelical pawnbrokers. And a very strange peculiarity in the atmosphere brought to the self-same spot, our most illustrious municipal executive Daniel F. Tiemann. And being mutual acquaintances, on Sunday last, they enjoyed a most comfortable chat, regulating the moral, sanitary and religious condition of our citizens, when Peter suddenly disappeared, and his body was only recovered a few hours before nightfall, when he was discovered thoroughly impregnated with a speech, which he will probably transmit to posterity upon the walls of the Institute, but which in reality is the personal property of Archbishop Hughes. And on the morrow Peter, like his saintly namesake, being a fisher of fish as well as of men, went forth to angle with the Vicar General, and the tonsured monk, but what caught he beside religious truths, which ever hang like diamonds upon the voices of the Archbishop's town friends, we regret to say we could not learn. There must be something over refreshing in the air of Long Branch, some resuscitating principle which can allure to that spot such a bevy of worthies, who, to while away their leisure, have probably settled in every manner, not only the Apostolic succession, but Mayor Tiemann's re-election.

We would like some of our cotemporaries to tell us what the people have gained in the election of Daniel F. Tiemann and the defeat of Fernando

Wood. The latter is a statesman, a fine lawyer, quick perception, brilliant talents, and with all the accusations against him, proved himself an able, efficient magistrate. But Tiemann, what shall the historian say of him? Echo answers write—on his tomb stone—“Here lies the paint manufacturer, Daniel F. Tiemann, who was unfortunately elected Mayor of New York, through a mistake of his friends. He’s gone—speak gently of his errors—the city debt mourns—the people they say—nothing.”

Owing to the large and increasing demand for the *ALLIGATOR*, we are induced, by Mr. Branch’s friends, to enlarge, consequently next week will appear a full grown monster—covering eight pages. Look out for next number. It will be rich and racy—full of spice.

AN AFTER-THOUGHT.—Mayor Tiemann, in his epistle to the Lord Mayor of London, remarks, with respect to the Atlantic Telegraph, that “to God be all praise.” We are glad that the Mayor has, like Saul of Tarsus, seen a great light, for last week Cyrus W. Field monopolized all the praise.

NIAGARA ECLIPSED.—We had always thought that Niagara *falls* were the greatest extant, but we are mistaken. We have lately discovered one fall infinitely greater than the above—Mayor Tiemann’s fall from the good opinion of the citizens of New York into the arms of James Gordon Bennett.

“A *STICK!*”—By all means, at all times, we would have our friends *stick* beside us; but the assumed friend, who, seeking help, helped himself with our *composing stick*, from *beside us*, may he soon need a *crutch*.—[D.]

A Pertinent Series of Queries.

To the Editor of the Alligator:

NEW YORK, August 24, 1858.

SIR.—There are a few things which I, with many others of my acquaintances, wish to know, relative to the assistant matron of Randall's Island, who figured so conspicuously in the press and in our Court of Sessions for the last month past. Before putting the questions, I would just say—as the subject of the note is a lady—if this were the first piece of scandal the citizens of New York had any knowledge of in connection with our city appointments, I, for one, would have been the first to have had this savory morsel consigned to the “tomb of all the Capulets.” Unfortunately it is not so. It is a well known fact that those who are fortunate enough to receive the patronage of the corporation of New York, and of all the lesser organizations in any way connected with our city, must, at least possess *one negative* qualification—they must be thoroughly destitute of honesty. Add to this a great talent for plundering the public treasury, drinking any quantity of rum, talking profanely, and well skilled in *fistiana*, drinking *swill milk* and eating *swill-fed beef*, and, in a word, in bamboozling everybody. It would appear, from disclosures lately made in certain quarters, the qualifications of the female portion of the appointees is in no way higher than the male portion.

The first question is—Did the Ten Governors, or any of them, *know* that this woman cohabited, as alleged in the *Alligator* and not disputed on the trial, with the individual represented as her friend? If so, this is a sad spectacle to be exhibited before our wives and daughters.

In the second place, why did Mayor, then Governor, Tiemann, if he did not *know*, prevent this *particular friend* from visiting the Island, while he permitted all the lady's other friends to visit her?

In the third place, how came this lady to be in want of small sums of money at different times, and how came she to make her wants known to Governor Tiemann? And, far more wonderful still, that he should supply them repeatedly without the former advance being liquidated? This seems to me passing strange when we come to reflect on the fact that this woman receives for her services on the Island \$800 per year; no small sum for an assistant matron.

In the fourth place, if all or any of the above be true—and it may be true for any thing I know—(the trial of Branch did not at all touch these questions)—why is the lady not removed from the Island, for she is totally unfitted for the responsible situation she now fills? If the charges be false, why does the lady not take immediate steps to clear herself from this heinous scandal? The public have a right to demand that she either clear her character or that she be removed from the Island.

A WORKING MAN.

☞ The *Sunday Mercury* reads us a homily, and attempts to whitewash the conduct of the Warden of the Penitentiary. John Smith, Jr., of Arkansas, is a great man in his own estimation, and it is a pity that the appreciation extends no further.

☞ The *Tribune* attempts to advise the Tammany Committee with regard to their political action. This is extremely civil as well as kind, and in return for this the Sachems will probably vote the Republican ticket. There is nothing more useful than perseverance, if we except putty.

Supreme Court.

In the matter of Stephen H. Branch undergoing sentence for libel.—Mr. Ashmead said he had obtained a writ of error in this case. He was at first disposed to let the judgment be affirmed by this Court without argument, in order that it might go to the Court of Appeals, but he was informed by Mr. Branch's friends that he is failing so fast that the question is doubtful whether he will live until the Court of Appeals meets.

Judge Davies—There is no other business before the Court.

Mr. Ashmead asked to have a day set down for the argument in this matter.

Judge Davies—No, sir; we cannot meet again until the third Monday in September.

Mr. Sedgwick, Assistant District Attorney, could not consent to the case going on out of the regular order. He had no doubt but Mr. McKeon would like to facilitate the argument; he was, however, out of town, and Mr. Sedgwick could not name any day.

Mr. Ashmead said that the defendant's points were so very clear and the exceptions taken so indisputable that he had no doubt that the case could be disposed of in fifteen minutes.

Mr. Sedgwick said the reason he could not consent was that Mr. Ashmead had intimated that he would make no strenuous opposition to a judgment for the people in this Court, in order that the case might go to the Court of Appeals at the next term; Mr. McKeon had left town with that understanding, but a few days since Mr. Ashmead gave notice that he would like to argue the questions here; counsel for the people were not therefore prepared.

Mr. Ashmead would consent to judgment for the people *pro forma*, but Mr. Branch's friends were importuning him to have the matter disposed of, as they feared he will not survive until the Court of Appeals meets in September.

The Court suggested that if Mr. Branch's health was such that his life was endangered, he could be admitted to bail.

Mr. Sedgwick said that he could be bailed by an order of the Court.

Judge Davies said this Court would adjourn to to-morrow or Saturday, for the purpose of hearing the argument, but Mr. Sedgwick could not say when Mr. McKeon would return. Upon the suggestion of the Court, the case took the regular order, to come before the General Term on the third Monday of September, which would give them time to go before the Court of Appeals on the fourth Tuesday of that month.

Mr. Ashmead said that he had searched the books, and from the time of Charles the Second down to the present day, there is no such sentence to be found on record.

The Court adjourned *sine die*.

The following is the substance of Mr. Ashmead's points for Branch:

1. In refusing to receive the testimony of the three witnesses who offered to prove that they told Branch the matters which he published, and which were charged as libellous, in order to rebut the implication of malice.
2. In charging the jury that if the defendant justified or proved the truth as to two of the parties charged, yet, that inasmuch as the indictment embraced a libel on three, he must still be found guilty.
3. That the whole proceedings are *coram non judice*, the Court having no jurisdiction to originate bills in case of misdemeanor.
4. In charging the jury that the law presumed malice from the publication of a libel, without instructing them at the same time that it was only a *prima facie* presumption, and could be rebutted by evidence.

BRANCH'S CONDITION.—A gentleman, upon whose statements we can place the utmost reliance, tells us that a day or two ago he visited Branch at

Blackwell's Island. After crossing the river and reaching the Island, the gentleman was shown into a small office attached to the Penitentiary. At this place he saw one of the clerks present an order from one of the "Governors," to be permitted to see Branch. After a few moments the unfortunate Alligator, but still indomitable Branch, presented himself. His face was paler than when in the city, and his general appearance was that of a man who was suffering from a want of nutritious food and the usual comforts of life. Branch was dressed in the prison costume, his hair was cropped and his whiskers shaved. He stated that he was now employed in carrying the tools used by the people of the quarry, and that, although the work was not necessarily too severe, yet the fact that he was confined all day amid the dust of the quarry, and fed on food which his system and appetite revolts at, he was rapidly losing his strength, and was threatened with a paralysis of his left side. He stated that he had to get upon several times in the night to rub his limbs, and that his case was aggravated from the fact that he was denied the use of slippers, and had consequently to stand on the stone floor whenever he was obliged to rise from his bed. He says that if the present severe discipline is not alleviated, he will not live six weeks, and his chest is severely affected by the dust of the quarry and the hard labor he has to perform, without adequate food.—*Daily Times*.

A story is told by Sir Walter Scott, of a Scotch nobleman who had a very ugly daughter called "Muckle Mouthed Meg," whom nobody would look at. Having caught a young man of good family on his estate in some scrape, he had him tried and condemned to be hanged. When the young man appealed to him, he told him, "The only way I can save you is by your marrying my ugly daughter." The young man said he would be hanged first. When brought out to the gallows and the rope was seen hanging ready, the young man cried out, "Let me have another look at her."

FALL ELECTION.

STATE OF NEW YORK, }
OFFICE OF THE SECRETARY OF STATE, }
ALBANY, August 2, 1858. }

To the Sheriff of the County of New York:

SIR—NOTICE IS HEREBY GIVEN, THAT AT THE GENERAL Election to be held in this State on the Tuesday succeeding the first Monday in November next, the following officers are to be elected, to wit:

A GOVERNOR, in the place of John A. King;

A LIEUTENANT GOVERNOR, in the place of Henry R. Selden;

A CANAL COMMISSIONER, in the place of Samuel B. Ruggles, appointed in place of Samuel S. Whallon, deceased;

AN INSPECTOR OF STATE PRISONS, in the place of William A. Russell;

All whose terms of office will expire on the last day of December next.

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Third Congressional District, composed of the First, Second, Third, Fifth and Eighth Wards in the city of New York;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Fourth Congressional District, composed of the Fourth, Sixth, Tenth and Fourteenth Wards in the city of New York;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Fifth Congressional District, composed of the Seventh and Thirteenth

Wards of the city of New York, and the Thirteenth, Fourteenth, Fifteenth and Sixteenth Wards of Brooklyn;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Sixth Congressional District, composed of the Eleventh, Fifteenth and Seventeenth Wards in the City of New York;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Seventh Congressional District, composed of the Ninth, Sixteenth, and Twentieth Wards in the City of New York;

And also, a REPRESENTATIVE in the Thirty-sixth Congress of the United States for the Eighth Congressional District, composed of the Twelfth, Eighteenth, Nineteenth, Twenty-first, and Twenty-second Wards in the City of New York.

COUNTY OFFICERS ALSO TO BE ELECTED FOR SAID COUNTY.

SEVENTEEN MEMBERS OF ASSEMBLY;

A SHERIFF, in the place of James C. Willett;

A COUNTY CLERK, in the place of Richard B. Connolly;

FOUR CORONERS, in the place of Frederick W. Perry, Edward Connery, Robert Gamble and Samuel C. Hills;

All whose terms of office will expire on the last day of December next.

The attention of Inspectors of Election and County Canvassers is directed to Chapter 320 of Laws of 1858, a copy of which is printed, for instructions in regard to their duties under said law, “submitting the question of calling a Convention to revise the Constitution and amend the same to the people of the State.”

CHAP. 320.

AN ACT to submit the question of calling a Convention to revise the Constitution and amend the same, to the People of the State:

Passed April 17, 1858—three-fifths being present.

*The People of the State of New York, represented in Senate and Assembly,
do enact as follows:*

SECTION 1. The Inspectors of Election in each town, ward, and election district in this State, at the annual election to be held in November next, shall provide a proper box to receive the ballots of the citizens of this State entitled to vote for members of the Legislature at such election. On such ballot shall be written or printed, or partly written and printed, by those voters who are in favor of a Convention, the words: “Shall there be a Convention to Revise the Constitution and amend the same? Yes.” And by those voters who are opposed thereto, the words: “Shall there be a

Convention to Revise the Constitution and amend the same? No.” And all citizens entitled to vote as aforesaid shall be allowed to vote by ballot as aforesaid, in the election district in which he resides, and not elsewhere.

§2. So much of the articles one, two and three, of title four, of chapter one hundred and thirty, of an act entitled “An act respecting elections other than for militia and town officer,” passed April fifth, eighteen hundred and forty-two, and the acts amending the same, as regulates the manner of conducting elections and challenges, oaths to be administered, and inquiries to be made, of persons offering to vote, shall be deemed applicable to the votes to be given or offered under the act; and the manner of voting and challenges, and the penalties for false swearing, prescribed by law, are hereby declared in full force and effect in voting or offering to vote under this act.

§3. The said votes given for and against a convention, in pursuance of this act, shall be canvassed by the Inspectors of the several election districts or polls of the said election in the manner prescribed by law, and as provided in article four, of title four, of chapter one hundred and thirty of the said act, passed April fifth, eighteen hundred and forty-two, and the acts amending the same, as far as the same are applicable; and such canvass shall be completed by ascertaining the whole number of votes given in each election district or poll for a convention, and the whole number of votes given against such convention, in the form aforesaid; and the result being found, the inspectors shall make a statement in words, at full length, of the number of ballots received in relation to such convention, and shall also state in words, at full length, the whole number of ballots having thereon the words, “Shall there be a Convention to revise the Constitution and amend the same? No.” Such statements as aforesaid shall contain a caption, stating the day on which, and the number of the district, the town or ward, and the county at which the election was held, and at the end thereof a certificate that such statement is correct in all respects, which certificate shall be subscribed by all the inspectors, and a true copy of such statement shall be immediately filed by them in the office of the clerk of the town or city.

§4. The original statements, duly certified, as aforesaid, shall be delivered by the inspectors, or one of them to be deputed for that purpose, to the supervisor, or, in case there be no supervisor, or he shall be disabled from attending the board of canvassers, then to one of the assessors of the town or ward, within twenty-four hours after the same shall have been subscribed

by such inspectors, to be disposed of as other statements at such election, are now required by law.

§5. So much of articles first, second, third, and fourth, of title fifth, of chapter one hundred and thirty, of the act entitled, “An act respecting elections other than for militia and town officers,” and the acts amending the same, as regulates the duties of County Canvassers and their proceedings, and the duty of County Clerks, and the Secretary of State, and the Board of State Canvassers, shall be applied to the canvassing and ascertaining the will of the people of this State in relation to the proposed convention; and if it shall appear that a majority of the votes or ballots given in and returned as aforesaid are against a convention, then the said canvassers are required to certify and declare that fact by a certificate, subscribed by them, and filed with the Secretary of State; but if it shall appear by the said canvass that a majority of the ballots or votes given as aforesaid are for a convention, then they shall by like certificates, to be filed as aforesaid, declare that fact; and the said Secretary shall communicate a copy of such certificate to both branches of the Legislature, at the opening of the next session thereof. Yours, respectfully,

GIDEON J. TUCKER, Secretary of State.

SHERIFF’S OFFICE, }
NEW YORK, August 4, 1858. }

The above is published pursuant to the notice of the Secretary of State, and the requirements of the Statute in such case made and provided.

JAMES C. WILLET,
Sheriff of the City and County of New York.

☞ All the public newspapers in the county will publish the above once in each week until the election, and then hand in their bills for advertising the same, so that they may be laid before the Board of Supervisors, and passed for payment. See Revised Stat. vol., 1, chap. 6, title 3, article 2d, part 1st, page 140.

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TRANSCRIBER'S NOTES

1. Changed “statelites” to “satellites” on p. [2](#).
2. Changed second “§2.” to “§3.” on p. [4](#).
3. Changed “capron” to “capon” on p. [2](#).
4. Silently corrected typographical errors.
5. Retained anachronistic and non-standard spellings as printed.

*** END OF THE PROJECT GUTENBERG EBOOK STEPHEN H.
BRANCH'S ALLIGATOR, VOL. 1 NO. 20, SEPTEMBER 4, 1858 ***

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